

SUBMISSIONS OUTLINE

Introduction

Identify Issues

Your Honour – I submit that there are three real issues of law in this case.

They are:

*One—**Injury**: Whether the complainant sustained an **injury**.*

*Two—**Causation**: Whether the injury, if Your Honour finds there was injury, was **caused** by the defendant.*

*Three—**Intention**: Whether any such injury was caused by the defendant **intentionally**.*

Outline Approach

I will now deal with each of these three issues in turn.

Argue Each Issue

Issue One

Identify issue – the question for the court to determine

*The first issue Your Honour—is whether the complainant was **injured**.*

State principle of law – the answer to the question

***Injury** is defined to include ‘pain and any substantial impairment of bodily function’.*

Name and explain authorities for principle

I rely for this definition on s 15 of the Crimes Act 1958, which relevantly states ... [QUOTE SECTION DIRECTLY].

That definition applies to all of the provisions contained in sections 16 to 34A of the Act. It applies to Charge One, which is laid under s 18.

Apply principle to the facts in the present case

Your Honour has heard evidence from the complainant as to the pain she felt at the time of, and after, she was struck by the defendant.

You have heard too the informant’s evidence of his observations of the complainant’s physical condition.

*I submit Your Honour that, if you accept it, that evidence would be sufficient to prove that **injury** was sustained.*

Conclusion

*Subject to any questions Your Honour may have – that concludes my submission on the issue of **injury**. PAUSE.*

*I will now address the next issue, **causation**.*

Issue Two

AS ABOVE ...

Issue Three

AS ABOVE ...

Conclusion

*Subject to any questions Your Honour may have – that concludes my submissions concerning the issues of **Injury**, **Causation** and **Intention**.*